

Royal Hotel v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 December 2019 · WRIT - C No. 39417 of 2019 · **Writ disposed of; petitioner to appear before the Executive Engineer with objections; speaking final order directed; coercive action stayed; Section 127 appeal left open.**

HEADNOTE

A writ seeking to quash a recovery notice for want of provisional assessment and hearing under the U.P. Electricity Supply Code, 2005 was disposed of without a merits decision. The High Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for seven weeks or until disposal of the objection, and left any grievance against the final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance would revive the recovery citation.

FACTUAL SUMMARY

Royal Hotel challenged a notice dated 24 October 2019 issued by the Executive Engineer of Paschimanchal Vidyut Vitran Nigam Ltd. It sought certiorari to quash the notice and a mandamus restraining further action unless a proper provisional assessment was made, the hotel was heard, and a final assessment followed. Counsel submitted that the licensee was taking coercive recovery steps without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking final order

HOLDING

Without quashing the impugned notice or examining whether the licensee had skipped provisional assessment and hearing, the Court directed the petitioner to appear on 17 December 2019 before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks of considering those objections, stayed coercive action for seven weeks or until disposal of the objection (whichever earlier), and left the petitioner, if aggrieved by the final order, to an appeal under Section 127 of the Electricity Act, 2003. Default in filing the objection would vacate the stay; failure to appear would revive the recovery citation. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 24 OCTOBER 2019 NOTICE WAS ISSUED WITHOUT A VALID PROVISIONAL OR FINAL ASSESSMENT, OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a 'lenient view' and gave process directions without examining the Supply Code complaint.

NOT DECIDED — MERITS OR QUANTUM OF THE UNDERLYING ASSESSMENT OR RECOVERY CITATION